

IN THE DISTRICT COURT OF THE STATE OF OKLAHOMA

RILEY SAMPLE,
Petitioner,

v.

THE STATE OF OKLAHOMA,
Respondent.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO EXPUNGE AN IDENTITY THEFT OR WRONG-PERSON RECORD PURSUANT TO
22 O.S. §§ 18, 19 AND 19a

STATUTORY AUTHORITY

22 O.S. § 19a — Identity-theft / wrong-person expungement under 22 O.S. § 19a and the Section 18 identity-theft category: available where the person was charged, arrested, or subject to a warrant for a crime committed by another person who used their name or identifying information without consent.

22 O.S. §§ 18-19 — Section 18/19 adult expungement under 22 O.S. §§ 18-19 covers categories including acquittal, conviction reversed and dismissed, DNA factual innocence, arrest with no charges filed, all charges dismissed without a deferred judgment, deferred/delayed-sentence dismissals, eligible misdemeanor and felony convictions, a nonviolent felony reclassified as a misdemeanor, full gubernatorial pardons, and identity-theft / wrong-person records.

22 O.S. § 19 — Section 19 procedure under 22 O.S. § 19: the qualified person petitions the district court where the arrest information is located; the court sets a hearing with 30 days' notice to the prosecuting agency, arresting agency, OSBI, and any other relevant agency, and may seal records if the harm to privacy or danger of unwarranted adverse consequences outweighs the public interest in retaining them. After sealing, the official actions are deemed never to have occurred. Section 19 does not authorize physical destruction of criminal-justice records.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the District Court of Cleveland County, State of Oklahoma, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Cleveland County, Oklahoma.

II. PARTIES

3. Petitioner is Riley Sample, whose address is 1234 Example Avenue, Norman, OK 73069.
4. Respondent is the State of Oklahoma.
5. Petitioner has also been known as: Riley Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 01/15/2024, Petitioner was charged with Larceny of merchandise from a retailer by Norman Police Department.
7. The matter was assigned Docket Number [TO BE CONFIRMED].
8. On 05/01/2024, the matter was resolved with the following disposition: Record identifies the wrong person; charges were brought against another person who used Petitioner's identity.

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expungement on the following basis: Identity theft / wrong-person record under 22 O.S. § 19a and the Section 18 identity-theft category — another person used Petitioner's name or identifying information without consent.
10. Another person used Petitioner's name and identifying information without Petitioner's consent, and the record described above was created in Petitioner's name as a result.
11. Petitioner asks that the proposed order identify each agency holding records of this matter, including the prosecuting agency, the arresting agency, and the Oklahoma State Bureau of Investigation.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the expungement of the records identified in this Petition (sealed pursuant to 22 O.S. § 19; the order must identify each agency to which it applies) in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Riley Sample, verify that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Riley Sample
1234 Example Avenue, Norman, OK 73069

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE DISTRICT COURT OF THE STATE OF OKLAHOMA

RILEY SAMPLE v. THE STATE OF OKLAHOMA
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Oklahoma State Bureau of Investigation, the prosecuting agency, the arresting agency, and the court clerk, Norman Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to seal all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Proposed Order to Expunge Records (identifying each agency to which it applies)
- Certified court record and disposition
- OSBI criminal history record

Prepared by petitioner using LegalEase RCAP. This is not an official court form.